

*Number* 26 *of* 2013

# CENTRAL BANK (SUPERVISION AND ENFORCEMENT) ACT 2013

**REVISED**

**Updated to 28 January 2019**

This Revised Act is an administrative consolidation of the *Central Bank (Supervision And Enforcement) Act 2013*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including *Local Government Act 2019* (1/2019), enacted 25 January 2019, and all statutory instruments up to and including *Central Bank (National Claims Information Database) Act 2018 (Commencement) Order 2019* (S.I. No. 2 of 2019), made 19 January 2019, were considered in the preparation of this Revised Act.

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AN ACT TO FURTHER PROVIDE FOR THE REGULATION AND SUPERVISION OF FINANCIAL SERVICE PROVIDERS AND FINANCIAL SERVICES; TO FURTHER PROVIDE FOR THE ENFORCEMENT OF FINANCIAL SERVICES LEGISLATION; TO PROVIDE FOR THE PROTECTION OF PERSONS REPORTING BREACHES; FOR THOSE AND OTHER PURPOSES TO PROVIDE FOR AMENDMENTS TO, AND TO FURTHER AMEND AND EXTEND, THE CENTRAL BANK ACTS 1942 TO 2012 AND CERTAIN OTHER ACTS AND STATUTORY INSTRUMENTS, AND TO PROVIDE FOR RELATED MATTERS.

[11*th July*, 2013]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

# PART 1

## Preliminary

Short title, collective citation and construction.

**1**.— (1) This Act may be cited as the Central Bank (Supervision and Enforcement) Act 2013.

(2) The Central Bank Acts 1942 to 2012 and this Act (other than *section 5*, in so far as it relates to *Schedules 3* and *4*, and *sections 75* to *78*, *80* to *87* and *89* to *94*) may be cited together as the Central Bank Acts 1942 to 2013 and shall be construed together.

Commencement.

**2**.— (1) This Act comes into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to a particular purpose or provision or class of person and different days may be so appointed for different purposes or different provisions or different classes of person.

(2) An order under *subsection (1)* may, in respect of the repeal of certain Acts to the extent specified in *Part 1* of *Schedule 1* and the revocation of certain statutory instruments to the extent specified in *Part 2* of that Schedule, effected by *section 4*, appoint different days for the repeal of different provisions of the Acts so specified or the revocation of different provisions of the statutory instruments so specified and for such repeal or revocation, as the case may be, for different purposes of any such provision.

### Amendments of European Communities (Insurance and Reinsurance Groups Supplementary Supervision) Regulations 2007

*Section 5(3).*

(S.I. No. 366 of 2007)

| Item (1) | Provision affected (2) | Amendment (3) |
|---|---|---|
| 1 | Regulation 3(1) | In the definition of "authorised officer" substitute "*Part 3* of the *Central Bank (Supervision and Enforcement) Bill 2013*" for "Part 5 of the Central Bank Reform Act 2010". |
| 2 | Regulation 9(7) | Substitute "under *Part 3* of the *Central Bank (Supervision and Enforcement) Act 2013*" for "under Part 5 of the Central Bank Reform Act 2010". |

## PART 3

### Amendments of European Communities (Information on the Payer Accompanying Transfers of Funds) Regulations 2007

*Section 5(3).*

| Item (1) | Provision affected (2) | Amendment (3) |
|---|---|---|
| 1 | Regulation 1 | Insert the following definition:<br>" 'authorised officer' means an authorised officer appointed under *Part 3* of the *Central Bank (Supervision and Enforcement) Act 2013*;". |
| 2 | Regulation 4 | Substitute the following for Regulation 4:<br>"4. For the purpose of ensuring compliance with the Parliament and Council Regulation, an authorised officer may exercise any of the powers conferred on him or her under *Part 3* of the *Central Bank (Supervision and Enforcement) Act 2013*.". |

## PART 4

### Amendment of European Communities (Reorganisation and Winding-up of Credit Institutions) Regulations 2011

*Section 5(3)*

(S.I. No. 48 of 2011)

| Item (1) | Provision affected (2) | Amendment (3) |
|---|---|---|
| 1 | Regulation 2(2) | Insert the following subparagraph after subparagraph (x):<br>"(xi) a direction given by the Bank under *Part 7* of the *Central Bank (Supervision and Enforcement) Act 2013* that contains a declaration that it or part of it is made with the intention of preserving or restoring the financial position of a credit institution, where the direction is capable of affecting the rights of third parties existing before the direction comes into effect.". |